

		(Wright Decl. ¶12.) This Notice of Ruling was served via electronic mail and regular mail. (See Ex. Id, Ex. 1.) Thereafter, on February 16, 2026, she sent a letter to Defendant asking that she comply with the Court’s order on or before February 19, 2028. (Id.¶14.) To date, Attorney Wright has not received a supplemental response or response to the meet and confer. (Id.¶5.) As such, Defendant Leonard, who is in pro per, has seemingly violated this Court’s order. However, this motion was sent to Defendant Leonard via email only. Yet, within the Motion to be Relieved as Counsel of Record documents filed with this Court, Defendant Leonard’s prior counsel listed Defendant Leonard’s current and last known address as: 220 Newport Center Drive, 11, Newport Beach, CA 92660. As such, in an abundance of caution, recommendation is to continue this motion to 08/11/2026 at 10:00 am for MP to serve Defendant Leonard at 220 Newport Center Drive, 11, Newport Beach, CA 92660; and via email. Thereafter, if the Motion remains unopposed, the Court intends on granting it. MP to give notice
109	Franks vs. Ford Motor Company 23-01361158	Motion for Judgment on the Pleadings Defendant Ford Motor Company (“Ford”) moves for judgment on the pleadings as to the first through fourth causes of action of plaintiff Chad Franks’ (“Plaintiff”) First Amended Complaint on the ground that that Plaintiff cannot bring claims under the SBA based on the purchase of a “used” vehicle and the seventh cause of action fails because the claim does not apply if Plaintiff does not have a viable state law claim and

		Plaintiff failed to comply with the pre-suit dispute requirements. The Court declines to consider Plaintiff’s untimely filed opposition, which was filed only six court days before the hearing date. A defendant may move for judgment on the pleadings against the entire complaint or as to any of the causes of action stated therein if the complaint fails to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 438(b), (c)(1)(B)(ii).) “A motion for judgment on the pleadings performs the same function as a general demurrer and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed.” (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.) Here, Plaintiff alleges he entered a warranty contract with Ford on August 31, 2022, regarding a Certified Pre-Owned 2018 Lincoln Navigator. This allegation shows that the vehicle purchased by Plaintiff was used. Ford argues that the Song-Beverly causes of action fail because the SBA does not apply because Plaintiff fails to allege that Ford provided a new car warranty in connection with the purchase of the vehicle. However, the allegations do not show that the used vehicle was not issued with a new warranty. Thus, Ford’s Motion as to the Song-Beverly causes of action is DENIED. (See Rodas v. Spiegel (2001) 87 Cal.App.4th 513, 517 [“The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded.”].) Ford argues that the breach of implied warranty of merchantability fails because Plaintiff purchased a used vehicle and only distributors or sellers of used goods have implied warranty obligations. “Under the lemon law, only distributors and retail sellers, not manufacturers, are liable for breach of implied warranties in the sale of a used car where . . . the manufacturer did not offer the used car for sale to the
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public.” (Nunez v. FCA US LLC (2021) 61 Cal.App.5th 385, 389.) “Where the manufacturer sells directly to the public, however, it takes on the role of a retailer.” (Id. at p. 399, internal citations omitted.) Here, Plaintiff alleges that Ford is both a manufacturer and/or a distributor under the Song-Beverly Act. (FAC ¶ 12.) Thus, the cause of action states sufficient facts despite the vehicle being used. The Motion as to the breach of implied warranty cause of action is therefore DENIED.

Ford argues that the seventh cause of action for The Magnuson-Moss Warranty Act fails because Plaintiff must have a valid state warranty law claim to assert such a claim. This argument fails because Plaintiff has adequately stated warranty claims under the Song-Beverly Act as discussed above.

Ford further argues that this cause of action fails because Ford maintains a third-party dispute resolution process under the Better Business Bureau (“BBB”) Auto Line, Plaintiff was required to resort to that dispute resolution process before filing suit, and Plaintiff failed to satisfy the pre-suit requirements.

15 U.S.C. § 2310(a)(3) provides that a consumer may not commence a civil action unless he or she initially resorts to an informal dispute settlement procedure established by the warrantor if such procedure meets certain requirements and a requirement is incorporated in a written warranty that the consumer resort to such procedure before pursuing any legal remedy.

Here, the warranty attached to the FAC includes no requirement that consumers such as Plaintiff must resort to Ford’s dispute resolution process before pursuing any legal remedy. Instead, the warranty provides that consumers “may use” Ford’s BBB Auto Line Program and “may be eligible to participate in the BBB AUTO LINE program” if their warranty concerns have not been resolved using the three-step procedure outlined in the warranty booklet. The warranty further

		provides information to consumers on how they can apply to the BBB Auto Line program. None of this verbiage indicates that consumers are required to resort to the dispute resolution process before filing a civil suit. Considering all the above, the Motion as to the seventh cause of action is DENIED. Moving party to give notice.
110	Arevalo vs. Clinton 21-01216715	Motion to Enforce Settlement Defendants Richard Arthur Clinton and Helen Clinton (“Defendants” or the “Clintons”) move for an order enforcing a settlement agreement with plaintiff Diane Arevalo Teets (“Plaintiff” or “Ms. Arevalo”) and entering judgment thereon. Defendants’ evidentiary objections to the Declaration of Charlene J. Wynder are OVERRULED. On November 14, 2024, the parties participated in a MSC before Temporary Judge G. Emmett Raitt, Jr. The minute order reads in relevant part: “Settlement conference held. Case is settled.” Counsel for the Clintons, Dina A. Ariza, asserts that she attended the MSC and the parties agreed to the following terms: Ms. Arevalo would be compensated \$45,000 in exchange for a grant of easement in favor of the Clintons for the purpose of maintenance, repair and/or replacement of the utilities, air conditioning unit, etc. and that side of the Clintons’ home where those utilities are located; the parties would do what was necessary to achieve the subordination of that deed of trust encumbering Ms. Arevalo’s property affected by the easement; and each party would bear their own attorney’s fees and costs and mutual general releases would be exchanged. (Declaration of Dina A. Ariza ¶ 3.) On November 15, 2024, the primary terms of the settlement were emailed from Ms. Ariza’s co-counsel to Charlene Wynder, counsel for Ms. Arevalo. (Id. ¶ 4.)